

26LBCV00152 26LBCV00152

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Case Number: 26LBCV00152 Hearing Date: September 3, 2026 Dept: S27

1. Background

Facts

Plaintiff, Berenice Perez Hernandez

filed this action against Defendants, Golden Horn Transportation, Inc., Amazon.com Services, LLC, Amazon Logistics, Inc., Velocity Trust Ltd., and Ghaith Ahmed Alhamadani for damages arising out of an automobile accident.

2. Motion

to Compel Further Responses

a. History

of Discovery Dispute

Defendant propounded RFAs on Plaintiff on 3/10/26. Plaintiff served responses on 4/27/26. Defendant sent a meet and confer letter, and Plaintiff served supplemental responses on 6/02/26. The parties then met and conferred at length, but were unable to resolve issues relating to whether the responses are sufficient. This motion was filed on 7/13/26.

b. Timeliness

of Motion

Plaintiff contends the motion was not timely filed and must be denied due to lack of jurisdiction to hear the

dispute. CCP §2033.290(c) gives a moving party 45 days after a party serves responses, “or any supplemental verified response,” to the discovery. Plaintiff concedes she served verified supplemental responses, but contends these were “further” responses and not “supplemental responses,” such that the time to file the motion was not extended. She argues §2033.290(c)’s use of the word “supplemental” is ambiguous and more likely refers to service of responses to supplemental RFAs.

Plaintiff’s position is unsupported by any authority and does not, frankly, make sense. A party can propound supplemental RFAs, but the responses are referred to as “responses to supplemental RFAs,” not “supplemental responses.” Supplemental responses are, by definition, responses that supplement the responses a party already served. Once a party serves verified supplemental (or further) responses to the discovery at issue, the time to file a motion to compel further responses runs from the date of service of those supplemental or further responses. In this case, those responses were served on 6/02/26, and this motion was timely filed thereafter on 7/13/26.

c. Mootness of Motion

Plaintiff also argues that, after she received the moving papers, she further supplemented her responses to the RFAs, such that the motion is moot. Plaintiff provides updated responses, which she served on 8/17/26, and which she contends render the motion moot. The Court has reviewed the 8/17/26 responses, and finds they did not meaningfully change the responses Plaintiff had already served. It appears the primary purpose of the 8/17/26 amendment was to cure a defect in the case number on the verification document.

Pursuant to *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 138 Cal.App.4th 390, the Court retains jurisdiction to rule on a motion to compel further responses even if the responding party serves supplemental responses to the subject discovery while the motion is pending. Because Plaintiff’s responses were not meaningfully amended, the Court

exercises its discretion and will rule on the motion on its merits.

d. Merits

There are 55 RFAs at issue between the parties. The Court will not go through each of the 55 RFAs one by one, as it is the parties' job to do so. Notably, CCP §2033.290(b)(2) permits the trial court to allow a moving party to submit a concise outline of the discovery request and the responses in dispute. The Court, going forward, would prefer that the parties do so.

The Court agrees with Plaintiff that many of the responses need not be amended further. By way of example, RFA 5 seeks to have Plaintiff admit that AAA Transportation LLC was the lessee of the vehicle per a lease agreement with Velocity. Plaintiff indicates she has made a reasonable search and diligent inquiry and she cannot admit or deny this request. This is reasonable. Defendants have superior knowledge of their own relationships with one another, their contractual relationships, and whether the documents they have submitted in discovery are authentic. By way of example, if Defendants gave Plaintiff a copy of the lease agreement they are seeking to have Plaintiff admit exists, it is unclear how Plaintiff would verify that the lease agreement is true and correct; again, this knowledge is exclusively Defendants' knowledge, not Plaintiff's.

The Court has briefly reviewed the remaining responses, and finds they all suffer from the same fate. By way of example, RFA asks Plaintiff to admit that Defendant did not pay wages, salary, or compensation of any kind to the person who was driving the vehicle that collided with Plaintiff. How would Plaintiff know this? Plaintiff may have documents from the various defendants, and those documents may establish what Defendant wants Plaintiff to admit, but Plaintiff is not in the position to authenticate any of those documents. The various defendants are the only ones who can do so.

The only exceptions to the above analysis that the Court has located are RFAs 42-46, which collectively ask Plaintiff to admit she has no evidence to support her various contentions. Plaintiff either has such evidence or she

does not. If she has the evidence, she should deny the requests. If she lacks the evidence, she should admit the requests. Her indication that, after reasonable diligence, she cannot respond is not sensical. She has made the allegations. She either has evidence to support them or she does not.

Additionally, while it is not clear what effect this admission would have absent the other admissions, it appears Plaintiff needs to further respond to RFA 51, which merely asks her to admit the Graves Amendment says what the Graves Amendment says.

Plaintiff must serve further responses to RFAs 42-46 and 51. The motion is otherwise denied.

e. Sanctions

Both parties seek sanctions with the motion and opposition. Because the motion is granted in part and denied in part, and because both parties took positions that are unsupported by the law in connection with their papers, all requests for sanctions are denied.

3. Upcoming

Discovery Motions

Moving Defendant has additional MTCFs scheduled for 1/05/27, 1/07/27, 1/12/27, 1/28/27, and 2/02/27. The Court is hopeful the parties can resolve their discovery dispute in light of the above analysis and without the need for a hearing. If this is not the case, the Court will hear all of the motions on 1/05/27.

The parties must submit a joint statement of items in dispute at least two weeks prior to the hearing date. The Court asks the parties to use the concise outline option to group similar discovery items together instead of repeating the same argument over and over. The Court orders that the statement be in the following format:

LIST OF EACH DISCOVERY ITEM IN
GROUP AND BASIC DESCRIPTION OF GROUP

Defendant's argument re: why the
responses in the group are insufficient

Plaintiff's argument re: why the
responses in the group are sufficient

If sanctions are at issue, the
parties must include a section on sanctions in the joint statement in the same
format.

The
parties are reminded that there is a Case Management Conference on calendar
concurrently with the hearing on the above motion. The Court asks the parties to make
arrangements to appear remotely at the CMC and hearing on the motion.